

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable Carla M. Singer
Judge of the Superior Court
County of Orange
P.O. Box 1994
Santa Ana, CA 92702-1994

Re: Castaneda, Christopher
CDC No.: AI1554
Case No.: 07CF3336
Date of Sentence: 7/8/2011

Dear Honorable Carla M. Singer:

The purpose of this letter is to provide the court with authority to resentence Christopher Castaneda pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Castaneda was sentenced in 2011, and was convicted of section 245, subdivision (a)(1), Assault with deadly weap. The trial court sentenced inmate Castaneda on 7/8/2011. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Castaneda's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Castaneda's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

A blue ink signature of Ralph M. Diaz, which is stylized and cursive.

RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Charles Margines, Orange County Presiding Judge
Orange District Attorney
Private Attorney

AI 1554

DNA TAKEN

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Orange		FILED SUPERIOR COURT OF CALIFORNIA, COUNTY OF ORANGE CENTRAL JUSTICE CENTER JUL 15 2011 ALAN CARLSON, Clerk of the Court MAYRA DIAZ MD DEPUTY	
PEOPLE OF THE STATE OF CALIFORNIA vs DEFENDANT: Castaneda, Christopher	DOB: 07-23-91	07CF3336 <i>BC</i>	-A
AKA: Spooky,			-B
CH#: A25052290			-C
BOOKING#: 2525546	☐ NOT PRESENT		-D
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT	☐ AMENDED ABSTRACT		-E
DATE OF HEARING 07-08-11	DEPT. NO. C36	JUDICIAL OFFICER Carla M. Singer	
CLERK Alma Garcia	REPORTER Lynn Paterson	PROBATION NO. OR PROBATION OFFICER	☐ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE Elisabeth McKinley		COUNSEL FOR DEFENDANT Frederick Mc Bride, Retained Attorney	☐ APPTD

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment

0 (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME CMYTD	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY			TERM (L,M,U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to item 5)	854 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS	MOS.
2A	PC	245(a)(1)	Assault with deadly weap	07	05/04/11	X			M							03	00

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or 'S' for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	TOTAL
2A	186.22(b)(1) PC	10Y00M	12022.7(a) PC	03Y00M					13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or 'S' for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	TOTAL

4. ☐ Defendant sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two-strikes).
☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed (Paper Commitment). Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: 00 00

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TER 16 00

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Castaneda, Christopher			
07CF3336	-A	-B	-C
			-D

9 FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5. ; \$ 200.00 per PC 1202.45 suspended unless parole is revoked.
\$ 0.00 per PC 1202.44 is now due, probation having been revoked.

Case B: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5. ; \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ 0.00 per PC 1202.44 is now due, probation having been revoked.

Case C: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5. ; \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ 0.00 per PC 1202.44 is now due, probation having been revoked.

Case D: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5. ; \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ 0.00 per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f)

Case A: \$ _____ ☐ Amount to be determined to ☐ Victims(s)* ☐ Restitution Fund

Case B: \$ _____ ☐ Amount to be determined to ☐ Victims(s)* ☐ Restitution Fund

Case C: \$ _____ ☐ Amount to be determined to ☐ Victims(s)* ☐ Restitution Fund

Case D: \$ _____ ☐ Amount to be determined to ☐ Victims(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 11, below.

☐ * Victim name(s), in probation officer's report.

c. Fine(s):

Case A: \$ _____ per PC 1202.5 \$ 0.00 per VC 23550 or 0 days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ _____ per PC 1202.5 \$ 0.00 per VC 23550 or 0 days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ _____ per PC 1202.5 \$ 0.00 per VC 23550 or 0 days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ _____ per PC 1202.5 \$ 0.00 per VC 23550 or 0 days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$ 40.00 per PC 1465.8.e. Criminal Conviction Assessment: \$ 30.00 per GC 70373.10. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☒ other (specify)

11. Other orders (specify):

DNA PC 296

Total term to be served in State Prison is 16 Years.

Count 5 found NOT GUILTY by jury.

Sentence on count 3 is stayed pending successful completion of sentence on count 2, then permanently stayed.

Credit for time served pursuant to PC 2933.1.

Defendant to register pursuant to PC 186.30.

Based on the Deputy District Attorney's representation that the victim was deported, the Court declines to retain jurisdiction of restitution.

Court orders all fees payable through the DOC.

Defendant advised of right to appeal.

Defendant ordered to report to Parole within 24 hours of release.

12. IMMEDIATE SENTENCING:

☐ Probation to prepare and submit post-sentence report to CDCR per PC 1203c.
Defendant's race/national origin: Hispanic

13. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing.
- b. ☐ at resentencing per decision on appeal.
- c. ☐ after revocation of probation
- d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
- e. ☐ other (specify):

15. The defendant is remanded to the custody of the sheriff

☒ forthwith☐ after 48 hours excluding Saturdays, Sundays, and holidays.To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	1577	1372	205 ☒ 4019 2933.1
B			☐ 4019 2933.1
C			☐ 4019 2933.1
D			☐ 4019 2933.1
DATE SENTENCE PRONOUNCED		TIME SERVED IN STATE INSTITUTION	
07/08/11		☐ DMH ☐ CDC ☐ CRC	

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

M. Diaz

DATE

JUL 15, 2011

